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|    |                                                                         | <p>The final approval hearing is scheduled for <u>January 14, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (<a href="http://www.occourts.org">www.occourts.org</a>).</p> <p>Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 9  | <p>Rodriguez Diaz v. Corales Restaurants, Inc.</p> <p>2015-00825337</p> | <p><u>Plaintiff's Motion for Final Approval of Class Action Settlement</u></p> <p>The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of a \$139,500 class action settlement. The court grants the motion as follows:</p> <p>\$10,000.00 for enhancement award to plaintiff;</p> <p>\$50,000.00 for attorneys' fees;</p> <p>\$12,870.48 for litigation costs (\$3,891.13 + \$8,979.35); and</p> <p>\$5,550.00 for settlement administration costs.</p> <p>For unknown reasons, plaintiff filed two copies of the second amendment to the second amended class action settlement agreement (ROA 562, 572), one signed only by plaintiff and one signed by plaintiff and defendants. The court has reviewed ROA 572 (the fully executed copy); plaintiff therefore need not take any further action in response to the court's August 26, 2026 order (ROA 575).</p> <p>The final accounting hearing is scheduled for <u>April 8, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law.</p> <p>Plaintiff is ordered to give notice and to file a proof of service.</p> |
| 10 | <p>Schimmelpfennig v. Philip Tupy</p> <p>2024-01408612</p>              | <p><u>Premier Building Systems, LLC's Motion for Relief from Stipulated Case Management Order</u></p> <p>Premier Building Systems, LLC (PBS) moves for relief from the Stipulated Case Management Order No. 1 entered in this case on March 14, 2025. ROA 148. PBS states that it had no involvement with the facts underlying this case. PBS asserts that plaintiff Paul Schimmelpfennig and defendant Philip Tupy dba Tupy Construction (Tupy) erroneously named PBS as a defendant and cross-defendant, respectively, and that both plaintiff and Tupy have since dismissed PBS. No oppositions to PBS's motion have been filed.</p> <p>Plaintiff named PBS as a defendant in his complaint by means of a Doe amendment filed March 20, 2026. ROA 314. Tupy named PBS as a cross-defendant by means of a Doe amendment filed September 8, 2025. ROA 201. PBS filed an answer to plaintiff's</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |

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|                 |                                                                     | <p>complaint on April 27, 2026. ROA 355. Plaintiff filed a first amended complaint on May 22, 2026. ROA 407. Plaintiff did not name PBS as a defendant in the first amended complaint, or in the Doe amendment to the first amended complaint plaintiff filed on June 10, 2026. ROA 407. Tupy dismissed PBS as a cross-defendant on May 26, 2026. ROA 397. PBS states plaintiff dismissed PBS on May 22, 2026 (Motion (ROA 391) at 3:11-12). The court file does not contain a request for dismissal of PBS filed by plaintiff on May 22, 2026 (or any time), but, as stated above, plaintiff's first amended complaint filed May 22, 2026 does not name PBS as a defendant. Moreover, plaintiff has not filed an opposition to PBS's instant motion or otherwise contested PBS's claim that plaintiff does not intend to proceed against PBS in this lawsuit.</p> <p>Accordingly, as neither plaintiff nor Tupy has opposed PBS's motion or otherwise contested PBS's claim that neither plaintiff nor Tupy intends to proceed against PBS in this lawsuit, and as no other party has opposed PBS's motion or otherwise indicated it intends to proceed against PBS in this lawsuit, to the extent PBS remains a party to the lawsuit at this time (it is not clear that it does), PBS is dismissed without prejudice from any pending complaint(s) and cross-complaint(s) and thus has no obligations under Stipulated Case Management Order No. 1.</p> <p>Clerk to give notice.</p> <p><u>Status Conference</u></p> <p>The court has reviewed the parties' joint* status conference statement filed August 27, 2026 (ROA 454), and based thereon continues the September 3, 2026 status conference to <u>January 7, 2027 at 9:00 a.m.</u> in Department CX105.</p> <p>The parties are ordered to file a joint status conference statement at least 5 court days before the hearing.</p> <p>*The August 27, 2026 joint status conference statement is not signed by counsel for cross-defendant Marvin Windows of Tennessee, LLC or counsel for defendant Carlisle Construction Materials LLC. The parties' next status conference should be joint, or should state the reason(s) all parties have not joined the statement.</p> <p>Clerk to give notice.</p> |
| 11<br>2:30 p.m. | <p>Barnes v. Prospect Medical Systems, LLC</p> <p>2025-01497633</p> | <p><u>Attorneys Duane Morris LLP and Cyndie Chang's Motion to be Relieved as Counsel</u></p> <p>Attorneys Duane Morris LLP and Cyndie Chang move to be relieved as counsel for defendant Prospect Medical Systems, LLC. California Rule of Court 3.1362 governs motions to be relieved as counsel. The court has reviewed the materials submitted by the moving parties and finds that Duane Morris LLP and Cyndie Chang have complied with the requirements of Rule 3.1362. The motion to be relieved as counsel is granted. The court's order shall</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |